

Type of Policy Administrative

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Policy Owner ACME Corporation CyberSecurity

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Reason for Policy

The ACME Corporation Data Privacy Policy provides the standards the Corporation follows when accessing the files and communications of its employees and contractors. In the interest of promoting corporate efficiency and the mission of the Corporation, ACME Corporation recognizes its obligation not to infringe upon the reasonable privacy expectations of its employees and contractors in their electronic communications and data.

Policy Statement

ACME Corporation provides information technology resources to employees and contractors for the purpose of furthering ACME Corporation's mission and conducting ACME Corporation business. While personal use of such systems is permitted, as per the ACME Corporation Acceptable Use policy, personal communications and files transmitted over or stored on ACME Corporation systems are subject to the same regulations as business communications.

ACME Corporation is committed to respecting the privacy expectations of its employees and contractors; however, consistent with this policy, electronic information that is transmitted over or stored in ACME Corporation systems and networks is subject to being audited, inspected, and disclosed to fulfill administrative or legal obligations which may include, but are not limited to, the following:

- Compliance with legal requirements or process (e.g., subpoenas);
- Investigation of a suspected violation of law or regulations, or a suspected infraction of ACME Corporation or Board of Directors policy;
- Maintaining the security of ACME Corporation computing systems and networks;
- Diagnosing and correcting problems with system software or hardware;
- Handling emergencies;

- Proceeding with ordinary business activities, such as accessing data associated with an employee who has been terminated/separated, is deceased, is on extended sick leave, or is otherwise unavailable;
- Complying with a written request from the Vice President for Human Resources on behalf of the parents, guardian, or personal representative of the estate of a deceased employee; or
- Conducting research authorized by ACME Corporation under a data use agreement that precludes the disclosure of personally identifiable information.

Data Retention

Please be aware that ACME Corporation practices data retention. Refer below to the timelines of our data retention based on different categories of information.

Type of Record	Retention Period
Selection, hiring and employment records	1 year after the documents were created or after the rejection/acceptance of a new employee. Whichever came later will be the one to determine the beginning of this 1 year period
Payroll records, time sheets/cards Basic employee data: • Name. • Address. • Social Security number. • Gender. • Date of birth. • Occupation. • Job classification.	3 years
Form I-9	3 years after hiring date or 1 year after termination. Whichever came last.
Background Checks • Credit reports. • Criminal history reports. • Driving records. • Information regarding character, general reputation, personal characteristics or mode of living. • Any other background check reports created by a third party.	1 year

• Consent forms and required disclosures to individuals subject to background checks.	
Tax Records • Employer identification number. • Amounts and dates of all wage, annuity and pension payments. • Amounts of tips reported. • The fair market value of in-kind wages paid. • Names, addresses, Social Security numbers, and occupations of employees and recipients. • Any employee copies of Form W-2 that were returned as undeliverable. • Dates of employment. • Periods for which employees and recipients were paid while absent due to sickness or injury and the amount and weekly rate of payments the employer or third-party payers made to them. • Copies of employees' and recipients' income tax withholding allowance certificates (Forms W-4, W-4P, W-4S and W-4V). • Dates and amounts of tax deposits. • Copies of returns filed. • Records of allocated tips. • Records of fringe benefits provided, including substantiation.	4 years
Health and Safety Records • Log of occupational injuries and illnesses. • Records of injuries and illnesses. • Summary of injuries and illnesses. • Employee medical records made or maintained by a health care professional. • Records of exposure to toxic substances for each employee.	5 years after the year in which these records were obtained.

This chart was modeled directly after SHRM's Federal Record Retention Policy. Certain cells referring to federal contractors were removed. Others were removed for the sake of succinctness. For a more detailed chart that includes Relevant Laws please refer to the original document.

Scope

This policy governs access to the files and communications transmitted on or stored in ACME Corporation's IT Resources.

Any individual whose personal files and communications exist on an ACME Corporation IT Resource by virtue of unauthorized access will have no expectation of privacy.

Definitions

- **Information Technology Resources (IT Resources)** – Computers, Networks, Devices, Storage, or other IT equipment.

Procedures

Application, System, and Network Login Banner

Where possible, all ACME Corporation applications and systems (excluding endpoints and mobile devices) must display the following login banner to all users prior to authentication of user credentials:

TERMS OF USE

This information technology resource is the property of ACME Corporation and is available for authorized use only, in accordance with corporate IT policies. Any and all files on this system are subject to being audited, inspected, and disclosed to authorized system administrators and/or law enforcement personnel to fulfill administrative and/or legal obligations. By using this system, I acknowledge these terms.

Requests for Access

All requests for access to information that is transmitted over or stored on ACME Corporation systems and networks should be directed to the Chief Information Officer or designee. The determination of whether access to information is necessary to fulfill administrative or legal obligations is made by the Chief Information Officer or designee, and may not be made at the departmental or unit level.